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Case Number: 23STCV04552 Hearing Date: July 7, 2026 Dept: 510

No.

14 - Pomona Valley Hospital Medical Center v. Kaiser Foundation Health Plan,
Inc.

Plaintiff's and Defendant's Motions to

Seal Documents Filed in Connection with Motions in Limine

Plaintiff

Pomona Valley Hospital Medical Center moves for an order sealing portions of documents filed in support of Defendant's oppositions to Plaintiff's motions in limine. Specifically, Plaintiff moves to seal the following:

1.

Kaiser's Opposition to Plaintiff's Motion

in Limine #1: Page 7, Lines 25, 28

2.

Kaiser's Opposition to Plaintiff's Motion

in Limine #2: Page 2, Lines 28, Page 6, Lines 13-16

3.

Kaiser's Opposition to Plaintiff's Motion

in Limine #4: Page 1, Lines 6-8, 23-24, Page 2, Lines 1-2, Page 3, Lines 16-17,
Page 4-5, 11-18, Page 7, Lines 4-11, 13-16, Page 8, Lines 1-3, 8-11, 20-22,
27-28, Page 9, Line 1, 19-23

4.

Kaiser's Opposition to Plaintiff's Motion

in Limine #5: Page 3, Line 21, Page 5, Lines 26-27

5.

Second Omnibus Declaration of Joseph A.

Reiter in support of Kaiser Foundation Health Plan Inc.'s Oppositions to Pomona

Valley Hospital Medical Center's Motions in Limine: Exhibits 44, 49, and 53

In

addition, Defendant Kaiser Foundation Health Plan, Inc. moves for an order sealing portions of documents filed in connection with the motions in limine. Defendant seeks to seal the following:

1.

Pomona's Motion in Limine #1: Page 6,

Lines 21-23

2.

Paragraph 8 of the Declaration of Ariana

Fuller, filed in support of Pomona's Motion in Limine #1

3.

Pomona's Motion in Limine #4: Page 5,

lines 13-15, 21-23

4.

Kaiser's Opposition to Pomona's Motion in

Limine #3: Portions of Footnote 4

5.

All of Ex. C to MIL No. 1 Fuller Decl.

(Letter from DMHC)

6.

All of Ex. D to MIL No. 1 Fuller Decl. (M.

Abhasakun Tr.)

7.

Pages 17–22, 40–41, 52, 57–58, 62, and

66–76 of Ex. E to MIL No. 1 Fuller Decl. (DMHC Tr.)

8.

Paragraphs 28, 51, 61, 62, 63, 65, and 69;

Footnotes 18, 19, 71, 82, 89; and Exhibits 1 and 8–15 to Ex. A to MIL No. 3

Fuller Decl. (Duggan Opening Report)

9.

Paragraphs 28, 51, 61, 62, 63, 65, and 69;

Footnotes 18, 19, 71, 82, 89; and Exhibits 1 and 8–15 to Ex. A to MIL No. 4

Fuller Decl. (Duggan Opening Report)

10. Slides

18, 19, 26, 27, 28, 30–34, 37, 39, 40, 45, 47, 54, 55, 60, 62–71, and 74–85 to

Ex. B to MIL No. 4 Fuller Decl. (Duggan Rebuttal Report)

11. Slides

5, 24, 25, 29–33, 35–39, 43–46, 48, 50, 56, 57, 59–62, 66, 69–71, 74, 76–80,

85, 87–94, 97, 101, 103, 107–109, and 135 to Ex. C to MIL No. 4 Fuller Decl.

(Fritz Opening Report)

12. Pages

8–10, 14, 16–19, 23–26, 29–30, 32, 38–39, 43–51, and 53–56 and Figures 1 2,

4–7, and 14–20 of Ex. D to MIL No. 4 Fuller Decl. (Fritz Rebuttal Report)

13. Paragraphs

28, 51, 61, 62, 63, 65, and 69; Footnotes 18, 19, 71, 82, 89; and Exhibits 1

and 8–15 to Ex. B to MIL No. 5 Fuller Decl. (Duggan Opening Report)

14. Exhibits

41, 43, 51, and 52, and portions of Exhibit 53 to the Second Omnibus

Declaration of Joseph Reiter

15. Portions

of Paragraph 3 to the Second Omnibus Declaration of Joseph Reiter

Because

these motions concern substantially similar subject matter and overlapping materials, the Court will address them together. The parties did not file any opposition briefs.

California Rules of Court, rule 2.550(d)

provides:

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

The Court finds an overriding interest overcomes the right of public access to these documents. Plaintiff states that the information they seek to sealed includes confidential “contract terms, contracting strategy, and confidential, sensitive financial reimbursement data and recruitment information.” (Fuller Decl., ¶ 2.) Similarly, Defendant claims that the information they seek to be sealed contains “non-public, confidential commercial and financial information” detailing its reimbursement methodology. (Abhasakun Decl., ¶¶ 3-4.) “[C]onfidential matters relating to the business operations of” a party can constitute an overriding interest that justifies sealing of records when “public revelation of [the] matters would interfere with its ability to effectively compete in the marketplace... .” (Universal City Studios, Inc. v. Super. Ct. (2003) 110 Cal.App.4th 1273, 1286.) Here, the parties have presented evidence to support their significant interest in maintaining the confidentiality of their sensitive business information.

This overriding interest supports sealing the record. Here, the parties’ right to protect their confidential business information trumps the public’s minimal need to access this information. A substantial probability exists that publicly disclosing the information will prejudice both parties’ overriding interest and harm them in the marketplace,

at least at this stage of the case.

In addition, the proposed sealing is narrowly tailored. The parties move to seal only those portions of exhibits and briefs that reference this confidential information. No less restrictive means exist to achieve the overriding interests in confidentiality.

Disposition

Plaintiff Pomona Valley Hospital Medical Center's motion to seal documents filed in connection with motions in limine is granted.

The Court hereby seals (1) Kaiser's Opposition to Plaintiff's Motion in Limine #1: Page 7, Lines 25, 28; (2) Kaiser's Opposition to Plaintiff's Motion in Limine #2: Page 2, Lines 28, Page 6, Lines 13-16; (3) Kaiser's Opposition to Plaintiff's Motion in Limine #4: Page 1, Lines 6-8, 23-24, Page 2, Lines 1-2, Page 3, Lines 16-17, Page 4-5, 11-18, Page 7, Lines 4-11, 13-16, Page 8, Lines 1-3, 8-11, 20-22, 27-28, Page 9, Line 1, 19-23; (4) Kaiser's Opposition to Plaintiff's Motion in Limine #5: Page 3, Line 21, Page 5, Lines 26-27; and (5) Second Omnibus Declaration of Joseph A. Reiter in support of Kaiser Foundation Health Plan Inc.'s Oppositions to Pomona Valley Hospital Medical Center's Motions in Limine: Exhibits 44, 49, and 53.

Defendant Kaiser Foundation Health Plan, Inc.'s motion to seal documents filed in connection with motions in limine is granted.

The Court hereby seals (1) Pomona's Motion in Limine #1: Page 6, Lines 21-23; (2) Paragraph 8 of the Declaration of Ariana Fuller, filed in support of Pomona's Motion in Limine #1; (3) Pomona's Motion in Limine #4: Page 5, lines 13-15, 21-23; (4) Kaiser's Opposition to Pomona's Motion in Limine #3: Portions of Footnote 4; (5) All of Ex. C to MIL No. 1 Fuller Decl. (Letter from DMHC); (6) All of Ex. D to MIL No. 1 Fuller Decl. (M. Abhasakun Tr.); (7) Pages 17-22, 40-41, 52, 57-58, 62, and 66-76 of Ex. E to MIL No. 1 Fuller Decl. (DMHC Tr.); (8) Paragraphs 28, 51, 61, 62, 63, 65, and 69; Footnotes 18, 19, 71, 82, 89; and Exhibits 1 and 8-15 to Ex. A to MIL No. 3 Fuller Decl. (Duggan Opening Report); (9) Paragraphs 28, 51, 61, 62, 63, 65, and 69; Footnotes 18, 19, 71, 82, 89; and Exhibits 1 and 8-15 to Ex. A

to MIL No. 4 Fuller Decl. (Duggan Opening Report); (10) Slides 18, 19, 26, 27, 28, 30–34, 37, 39, 40, 45, 47, 54, 55, 60, 62–71, and 74–85 to Ex. B to MIL No. 4 Fuller Decl. (Duggan Rebuttal Report); (11) Slides 5, 24, 25, 29–33, 35–39, 43–46, 48, 50, 56, 57, 59–62, 66, 69–71, 74, 76–80, 85, 87–94, 97, 101, 103, 107–109, and 135 to Ex. C to MIL No. 4 Fuller Decl. (Fritz Opening Report); (12) Pages 8–10, 14, 16–19, 23–26, 29–30, 32, 38–39, 43–51, and 53–56 and Figures 1 2, 4–7, and 14–20 of Ex. D to MIL No. 4 Fuller Decl. (Fritz Rebuttal Report); (13) Paragraphs 28, 51, 61, 62, 63, 65, and 69; Footnotes 18, 19, 71, 82, 89; and Exhibits 1 and 8–15 to Ex. B to MIL No. 5 Fuller Decl. (Duggan Opening Report); (14) Exhibits 41, 43, 51, and 52, and portions of Exhibit 53 to the Second Omnibus Declaration of Joseph Reiter; and (15) Portions of Paragraph 3 to the Second Omnibus Declaration of Joseph Reiter.

These

rulings do not mean that the sealed information or documents will remain confidential at trial.